APHC010388412026

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI **[3331]**
(Special Original Jurisdiction)

WEDNESDAY, THE 19th DAY OF AUGUST 2026

PRESENT

THE HONOURABLE SRI JUSTICE SUBBA REDDY SATTI

WRIT PETITION NO: 20883/2026

Between:

1. PULI JAYAMMA, AGED ABOUT 56 YEARS, W/O.PULI SUBBARAYUDU R/O.H.NO.38/247-6-7 (HOUSE IN MANGO GARDEN) RAMANJANEYAPURAM, CHINNACHOWK, KADAPA CITY-516002 YSR KADAPA DISTRICT, ANDHRA PRADESH.

2. PULI VANAJA,, AGED ABOUT 51 YEARS W/O. P.NAGA RAJU, R/O.H.NO.38/247-6-7 (HOUSE IN MANGO GARDEN) RAMANJANEYAPURAM, CHINNACHOWK, KADAPA CITY-516002 YSR KADAPA DISTRICT, ANDHRA PRADESH.

...PETITIONER(S)

AND

1. THE STATE OF ANDHRA PRADESH, , REP. BY ITS PRINCIPAL SECRETARY TO GOVERNMENT, REVENUE DEPARTMENT, SECRETARIAT, VELAGAPUDI, AMARAVATI, GUNTUR DISTRICT-522238

2. THE DISTRICT COLLECTOR, YSR KADAPA DISTRICT AT KADAPA-516004

3. THE JOINT COLLECTOR, YSR KADAPA DISTRICT AT KADAPA-516004

4. THE REVENUE DIVISIONAL OFFICER, KADAPA DIVISION YSR KADAPA DISTRICT AT KADAPA-516001

5. THE TAHSILDAR, KADAPA MANDAL, YSR KADAPA DISTRICT AT KADAPA-516001

6. THE MANAGING DIRECTOR, A.P. RAJIV SWAGRUHA CORPORATION LTD., DOOR NO.5-21, HOSTEL ROAD, PRASADAMPADU, VIJAYAWADA-521108.

7. THE GENERAL MANAGER, A.P.RAJIV SWAGRUHA CORPORATION LTD., SANKARAPURAM, KADAPA CITY,YSR KADAPA DISTRICT-516002

...RESPONDENT(S):

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to issue an appropriate Writ, Order or Direction, more particularly one in the nature of a Writ of Mandamus, declaring the proceedings of the 3rd Respondent/Joint Collector, YSR Kadapa District in File no. REV-DSEC0ROR(AD)/110/2025-SA-D2-KANDB-KDPCO dated 10.07.2026 refusing to restore the petitioners names in column 11 and 12 of Adangals, 1-B Register of webland records as pattadar and enjoyer of the lands admeasuring Ac. 1.50 cents each in Sy.No. 1001/2 and Sy.No.1001/4, situated at Chinnachowk Village, Ramanjaneyapuram, Kadapa Mandal, YSR Kadapa District by duly deleting the name of the respondent no.6 and 7 /A.P. Rajiv Swagruha Corporation Limited and directing the petitioners to receive exgratia or opt for alternate land as illegal, arbitrary. Unconstitutional, Violative of Section 24(2) and section 101 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, violative of the principles of natural justice and Articles 14, 21 and 300-A of the Constitution of India, and Consequently set aside the proceedings of the 3rd Respondent/Joint Collector, YSR Kadapa District in File No. REV-DSEC0ROR(AD)/110/2025-SA-D2-KANDB-KDPCO dated 10.07.2026 and direct the Respondent Nos.2 to 5 to restore the name of the petitioners in column 11 and 12 of Adangals, 1-B Register of webland records as pattadar and enjoyer of the lands admeasuring Ac.1.50 cents each in Sy.No.1001/2 and Sy.No.1001/4, situated at Chinnachowk Village, Ramanjaneyapuram, Kadapa Mandal, YSR Kadapa District by duly deleting the name of the respondent no.6 and 7 / A.P. Rajeev Swagruha Corporation Limited within a stipulated period of time and to pass

IA NO: 1 OF 2026

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to Suspend the operation of the proceedings of the 3rd Respondent/Joint

Collector, YSR Kadapa District, in File No. REV-DSECOROR(AD)/110/2025-SA-D2-KANDB- KDPCO,dated 10.07.2026 pertains to the petitioners lands admeasuring Ac. 1.50 cents in Sy.No. 1001/2 and Ac. 1.50 cents in Sy.No. 1001/4 situated at Chinnachowk Village, Ramanjaneyapuram, Kadapa Mandal, YSR Kadapa District pending disposal of the Writ Petition, and pass

IA NO: 2 OF 2026

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to direct the Respondents their officers, subordinates, servants. agents or anybody claiming through them, not to interfere with the peaceful possession and enjoyment of the petitioners over the lands admeasuring Ac.1.50 cents in Sy.No.1001/2 and Ac.1.50 cents in Sy.No. 1001/4 situated at Chinnachowk Village, Ramanjaneyapuram, Kadapa Mandal, YSR Kadapa District, pending disposal of the Writ Petition, and pass

Counsel for the Petitioner(S):

1. AMANCHI ROYAL

Counsel for the Respondent(S):

1. GP FOR REVENUE

The Court made the following:

::ORDER ::

Assailing the proceedings issued by respondent No.3 *vide* File No.:REV-DSECOROR(AD)/110/2025-SA-D2-KANDB-KDPCO, dated 10.07.2026 (Ex.P1), the above writ petition was filed.

2. Heard Sri Amachi Royal, learned counsel for the petitioners, and Sri G. Divya Theja, learned Assistant Government Pleader for Revenue, appeared for the respondents.

3. The Government granted DKT pattas to the petitioners in respect of Ac.1.50 cents each in Survey Nos.1001/2 and 1001/4 *vide* DKT No.83/1404, dated 05.10.1994 and DKT No.91/1404, dated 05.10.1994 situated in Puli Vanaja, Chinna Chowk Village, Ramanjaneyapuram, Kadapa. The petitioners submitted a representation dated 10.08.2015 seeking removal of the Rajiv

Swagruha Corporation's name and restoration of their names as pattadars and enjoyers in Column Nos.11 & 12 of the Adangal and 1B register. However, no action has been taken so far.

(a) The petitioners filed W.P.No.34371 of 2015. The said writ petition was disposed of on 26.10.2021, giving liberty to the petitioners to make an appropriate application through Mee-seva/Online Portal. The petitioners applied through Mee-seva. However, the authorities failed to pass any order. The petitioners made representations to the Tahsildar, respondent No. 5, on 29.10.2022 and 14.06.2023. Thereafter, the petitioners also made an application in PGRS.

(b) The Village Revenue Officer, Chinnachowk, and Revenue Inspector of Kadapa Mandal visited the land and submitted a report dated 29.12.2024 and 31.12.2024 to the Tahsildar, Kadapa Mandal. The Tahsildar, in turn, submitted a report *vide* Reference No.D2/882/2024, dated 03.01.2025 to the Revenue Divisional Officer. Thereafter, W.P.No.28613 of 2025 filed by the petitioners was disposed of, with a direction to dispose of the appeal filed vide File No.REV-DSECOROR(AD)/110/2025-SA-D2-KANDB-KDPCO, dated 16.06.2025, as expeditiously as possible, preferably within two months. Thereafter, the respondent No.3 issued notices. The petitioners submitted written arguments along with the documents.

(c) Later, the petitioners filed C.C.No.2127 of 2026. After the contempt case was filed, the order impugned *vide* Ex.P1 was passed.

4. Learned counsel for the petitioner would submit that no reasons were assigned in the proceedings impugned, except for stating that “the request of the petitioners for entering the subject land in the Webland records in their favour could not be considered”. Hence, the same is liable to set aside.

5. On the other hand, Sri G. Divya Teja, learned Assistant Government Pleader for Revenue, would submit that after considering the relevant documents, the respondent No.3 passed the order *vide* Ex.P1.

6. The point for consideration is:

"Whether the proceedings issued by respondent No.3 *vide* File No.:REV- DSECOROR(AD)/110/2025-SA-D2-KANDB-KDPCO, dated 10.07.2026 (Ex.P1) are legally sustainable?"

7. Shorn of all details, the impugned proceedings run into four pages. However, no reasons were mentioned, except for stating that "In compliance with the orders passed by the Hon'ble High Court in W.P. No. 28613 of 2025 dated 30.10.2025, regarding the disposal of File No. REV-DSEC0ROR(AD)/110/2025-SA-D2-KANDB-KDPCO, dated 16.06.2025, the request of the petitioners for entering the subject land in the Webland records in their favour could not be considered."

8. In **Kadiyala Sudershan and others v. Government of Andhra Pradesh represented by its Principal Secretary, Revenue Department and others**[1], a learned single judge of the Composite High Court, at para Nos.5 & 6, observed as follows:

> *"5. A person in possession of the Government land is liable to be evicted under the provisions of the Act. The Act has laid down the procedure for evicting such person. As a first step towards this direction, a show-cause notice under Section 7 of the Act requires to be given to the person in occupation of the land. After receiving the notice, an order needs to be passed under Section 6 of the Act. If the competent authority is satisfied that the person in possession of the land is liable to the evicted, he has to issue a notice in the prescribed form. Though the provisions of Section 6 of the Act do not in express terms enjoin on the competent authority to pass a speaking order, the very fact that Section 7 of the Act envisages a show-cause notice pre-supposes that the competent authority has to deal with the explanation/objections filed by the person in possession of the land. Unless a reasoned order is passed, the person in occupation of the*

[1] 2013(6) ALT 42 (S.B)

land does not know as to why an order of eviction is passed against him. Further, an appeal under Section 10 of the Act is envisaged by the Act. Unless the order contains reasons, the appellate authority will not be in a position to examine the validity or otherwise of the order and decide the appeal.

6. From the scheme of the Act, I am of the opinion that the notice of eviction prescribed under Section 6 of the Act, which is akin to a decree, needs to be supported by a reasoned order comparable to a judgment. Otherwise, Section 7 of the Act providing for issuance of a show-cause notice would be rendered nugatory or reduced to an empty formality."

9. It is a settled principle of law that reasoning is the heartbeat of every order. The quasi-judicial authority shall consider the contentions of the parties. If the authority does not accept, there should be a finding to that effect. The reasons recorded by the authority disclose the mental process by which the decision has been reached and demonstrate that the matter has received due and thoughtful consideration. The reasons assure the parties that their submissions have been considered and promote transparency in the administration of justice. The reasons further facilitate appellate or supervisory review courts in understanding the order. Reasons serve as a safeguard against arbitrariness by ensuring that conclusions are grounded in legal principles and evidence rather than mere subjective opinion. Non-recording of reasons could lead to dual infirmities; firstly, it may cause prejudice to the affected party and secondly, more particularly, hamper the proper administration of justice. Therefore, recording of clear, cogent reasons is an indispensable component of the rule of law. See **S.N.Mukherjee v. Union of India[2].**

[2] 1990(4) SCC 594

10. The writ petition was listed on 17.08.2026, and the same was adjourned at the request of the learned Assistant Government Pleader for Revenue to get instructions from respondent No.3.

11. Today, when the matter was taken, Sri G. Divya Teja, learned Assistant Government Pleader for Revenue, submitted the written instructions of respondent No.3. Even the instructions submitted do not indicate the reasons in support of Ex.P1 proceedings.

12. As seen from Ex.P1, this Court is of the considered opinion that, keeping in view the filing of C.C.No.2127 of 2026 in W.P.No.28613 of 2025 by the petitioners, the respondent No.3 passed the proceedings impugned in the writ petition. Absolutely, no reasons were assigned except for one line, referred to *supra*. If the proceedings impugned are allowed to continue, it might result in miscarriage of justice. Hence, the proceedings impugned are liable to be set aside.

13. Given the facts and circumstances of the case, the Writ Petition is allowed. The proceedings issued by respondent No.3 *vide* File No.:REV-DSECOROR(AD)/110/2025-SA-D2-KANDB-KDPCO, dated 10.07.2026 (Ex.P1) are hereby set aside. The matter is remanded to Respondent No.3. Respondent No.3 shall afford an opportunity of hearing to the petitioner and pass a reasoned order, as expeditiously as possible, preferably within eight (08) weeks from the date of receipt of a copy of the order. No order as to costs.

As a sequel, pending miscellaneous petitions, if any, shall stand closed.

JUSTICE SUBBA REDDY SATTI

Date: 19.08.2026
TVN

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THE HONOURABLE SRI JUSTICE SUBBA REDDY SATTI

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